

Missing sufficient notice of hearing for petition to determine trust property. The notice previously filed and served is for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date.

It is recommended the petition to determine trust property be denied, as follows:

Relief is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the properties are not identified in the trust or any trust exhibit.

Relief is not available under *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156 depends. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Id.* at 162–163. Petitioner admits in the petition that there is no funding clause of any kind in the trust or any other document.

The pourover will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior* to [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

19. S-PR-0014100 In Re the Estate of Quintanar, Phillip Jesus

Missing sufficient notice of hearing for petition to administer estate. The notices previously filed, served, and published, are for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date.

Missing required required allegations at ¶ 5a(3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)), & 5a(b) (step- or foster child(ren)).

20. S-PR-0014101 In Re the Greene Fam 1997 Trust

Petition to terminate exemption subtrust share is recommended for approval as prayed.

21. S-PR-0014102 In Re the Johnson Fam 2012 Rev Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

22. S-PR-0014103 In Re the Estate of Nunes, Darlene Marie

Missing required allegations at ¶ 6 of the petition. The response to calendar notes addressed only the ¶ 7 issue.

23. S-PR-0014106 In Re the Annette M Sunde Supplemental Needs Trust

Appearance is required for hearing on trust petition.

It is recommended the trustee 1st / final account be approved.

It is recommended the request to confirm trusteeship of Foster be approved in part. The trust grants power to the trustee of the Carol A Gage & James W Gage Rev Living Trust to name a successor trustee of the SNT share. The power to name a successor SNT trustee cannot be limited to the time of Carol Gage's death as an executor cannot be appointed until after death and appointment could occur a significant period time—even years—after death. Nothing in the trust language limits the power of an executor or of the trustee to act to the time at or very soon after settlor's death. However, neither does the trust language empower the trustee to remove SNT successor trustees at will (or even for cause). As Kinsman has stated an intention to resign, it is recommended the court find that Fielding, as trustee of the Carol A Gage & James W Gage Rev Living Trust, has power to name a successor.

It is recommended the request to modify the trust be denied under Prob.C. § 17202.

Confirmation of Foster as trustee, however, cannot include waiver of bond. Foster is required to be bonded. See Prob.C. § 15602(a)(3). Petitioner offers nothing which constitutes "compelling circumstances" to excuse the requirement for trustee bond. Prob.C. § 15602(b).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.

24. S-PR-0014108 In Re the Stevens Fam Trust

Appearance is required for hearing on petition to compel trustee account.

25. S-PR-0014110 In Re the Estate of Bayes, Peter

Missing sufficient publication of notice of hearing. The notice as published was for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing published notice of hearing for the July 27 date.